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**EXHIBIT C-1
REBATE PROGRAM**

The terms of the Rebate Program are as follows:

- 1. DEFINITIONS.** The following capitalized terms shall have the meanings given below.
- a. **"Applicable Products"** shall mean the Medtronic products identified in **Attachment A**, except that the term specifically excludes: (i) products that are separately reimbursable by Medicare or another federal healthcare program; (ii) all products that are approved for sale pursuant to a specific pre-market regulatory exemption (e.g. HDE, IDE, etc.); (iii) all capital equipment and service; and (iv) any excluded Medtronic products specifically identified in **Attachment A**.
 - b. **"Net Purchases"** means the total gross units of Applicable Products under this Agreement (either direct from Medtronic, or, if applicable, through an authorized distributor), less (i) refunds, credits or allowances, if any, actually granted during the Rebate Period on account of price adjustments on, or recalls, rejection or return of Applicable Products; (ii) excises, sales taxes, value added taxes, consumption taxes, duties or other taxes, if applicable to Customer; (iii) separately itemized interest charges, loaner/usage fees, shipping and handling fees, insurance and transportation costs; and (iv) distributor mark-ups.

2. REBATE OPPORTUNITY AND REQUIREMENTS.

For each Rebate Period in which Customer meets or exceeds the Rebate Target set forth in the table below, Customer will be eligible to receive a Rebate equal to its Net Purchases multiplied by the Rebate per Unit identified in the table below. For clarification and not in limitation of the foregoing, in any one Rebate Period, Customer will be eligible to receive only one Rebate, leveraging the greatest Rebate Tier for which it is eligible.

PRODUCT LINE	TIER	REBATE TARGET	PRODUCT	REBATE PER UNIT
TRANSCATHETER AORTIC VALVES	1	≥22 Net Purchases	Evolut FX Transcatheter Aortic Valve	\$1,500
			Evolut FX+ Transcatheter Aortic Valve	\$2,000
	2	≥26 Net Purchases	Evolut FX Transcatheter Aortic Valve	\$2,500
			Evolut FX+ Transcatheter Aortic Valve	\$3,500
	3	≥30 Net Purchases	Evolut FX Transcatheter Aortic Valve	\$3,000
			Evolut FX+ Transcatheter Aortic Valve	\$5,000

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**ATTACHMENT A
Applicable Products**

OPERATING UNIT	PRODUCT LINE/PRODUCT
STRUCTURAL HEART	Transcatheter Aortic Valve

The following Medtronic products are excluded from the attainment and calculation of any Rebates included in this Agreement: Congenital Therapies products

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**EXHIBIT F
Medtronic Advantage Rebate Program and General Rebate Terms**

6. **Rebate Period:** “**Rebate Period**” means each successive twelve-month period during the Rebate Program Term (as defined in Section 5). For any partial Rebate Period, the Rebate targets and payment amounts will be pro-rated on a per-day basis, as applicable.
7. **Compliance and Payment:**
- a. **Payment of Rebates:** Within ninety (90) days following the last day of each Rebate Period, Medtronic will calculate the Rebates and pay any earned Rebate to Customer for distribution to the Customer Facilities whose purchases earned the Rebate. Payment will be in the form of electronic funds transfer (“EFT”) applied to Customer’s account. If EFT setup is not currently in place, enrollment forms will be supplied by Medtronic. If enrollment is not completed prior to the Rebate payment date, the Rebate will be issued to Customer in the form of a credit memo.
- b. **Additional Requirements:** Upon request of Customer, Medtronic may conduct business reviews with the Customer on a quarterly basis. A quarterly report of Customer’s actual purchases or acquisitions and Net Purchases for any product type under **Exhibit F-1** will be available upon request from Medtronic. Notwithstanding any other provisions of this Agreement or the Master Agreement, Medtronic reserves the right to withhold payment of any earned Rebate (in whole or in part) if the Customer (i) is not in compliance with the terms of the Master Agreement or this Agreement, (ii) is not in good credit standing as reasonably determined by Medtronic’s Accounts Receivable Department, or (iii) has not paid any invoice for any purchase giving rise to such Rebate.
8. **Treatment of Discounts.** The Parties intend to establish a business relationship in which any rebates, discounts, payments and credits that may be provided to Customer comply with the exceptions to the Medicare and Medicaid Anti-Kickback statute set forth at 42 U.S.C. § 1320a-7b(b)(3) and the “Safe Harbor” regulations regarding discounts set forth in 42 C.F.R. § 1001.952(h); and the Parties believe that the relationship contemplated by this Agreement is in compliance with those requirements. As to such discounts and rebates, the Parties agree to fulfill their obligations under the Safe Harbor and the Customer agrees to fully and accurately reflect in cost reports or other submissions to federal healthcare programs all discounts provided under this Agreement, and upon request by the Secretary of the U.S. Department of Health and Human Services or state agency, must make available information provided to Customer concerning the discount.
9. **Documentation of Product Rebates.** To provide Customer the information necessary to facilitate its reporting obligations, if any, Medtronic will provide Customer a statement at the time of payment of any Rebates earned by Customer to identify the types and quantities of Products purchased and used to calculate such Rebate.
10. **Rebate Program Term and Termination.** The “**Rebate Program Term**” will commence on the Effective Date and continue through June 30, 2027, subject to earlier termination or expiration of the Agreement. This Rebate Program may be terminated for any cause or no cause by giving the other Party thirty (30) days advance written notice of termination.

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**EXHIBIT F-1
MEDTRONIC ADVANTAGE REBATE PROGRAM**

The terms of the Rebate Program are as follows:

- 1. DEFINITIONS.** The following capitalized terms shall have the meanings given below.
- c. **"Applicable Products"** shall mean the Medtronic products identified in **Attachment A**, except that the term specifically excludes: (i) products that are separately reimbursable by Medicare or another federal healthcare program; (ii) all products that are approved for sale pursuant to a specific pre-market regulatory exemption (e.g. HDE, IDE, etc.); (iii) all capital equipment and service; and (iv) any excluded Medtronic products specifically identified in **Attachment A**.
 - d. **"Net Purchases"** means the total gross units of Applicable Products under this Agreement (either direct from Medtronic, or, if applicable, through an authorized distributor), less (i) refunds, credits or allowances, if any, actually granted during the Rebate Period on account of price adjustments on, or recalls, rejection or return of Applicable Products; (ii) excises, sales taxes, value added taxes, consumption taxes, duties or other taxes, if applicable to Customer; (iii) separately itemized interest charges, loaner/usage fees, shipping and handling fees, insurance and transportation costs; and (iv) distributor mark-ups.

2. REBATE OPPORTUNITY AND REQUIREMENTS.

For each Rebate Period in which Customer meets or exceeds the Rebate Target set forth in the table below, Customer will be eligible to receive a Rebate equal to its Net Purchases multiplied by the Rebate per Unit identified in the table below. For clarification and not in limitation of the foregoing, in any one Rebate Period, Customer will be eligible to receive only one Rebate, leveraging the greatest Rebate Tier for which it is eligible.

PRODUCT LINE	TIER	REBATE TARGET	PRODUCT	REBATE PER UNIT
TRANSCATHETER AORTIC VALVES	1	125	Transcathether Aortic Valve	\$500

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**ATTACHMENT A
Applicable Products**

OPERATING UNIT	PRODUCT LINE/PRODUCT
STRUCTURAL HEART	Transcatheter Aortic Valve

The following Medtronic products are excluded from the attainment and calculation of any Rebates included in this Agreement: Congenital Therapies products